

Assam Acquisition of Land for Flood Control and Prevention of Erosion Act, 1955

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State of Assam - Act

Assam Acquisition of Land for Flood Control and Prevention of Erosion Act, 1955

ASSAM

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Assam Acquisition of Land for Flood Control and Prevention of Erosion Act, 1955

Act 6 of 1955

Published on 11 April 1955

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Assam Acquisition of Land for Flood Control and Prevention of Erosion Act, 1955

Assam Act

No. 6 of 1955

Last Updated 8th February, 2020

Received the assent of the President on the 11th April 1955, published in the Assam Gazette, Extraordinary, dated the 12th April 1955.

An Act to provide for speedy acquisition of land for works or other development measures in connection with flood or prevention of erosion.

Preamble. - Whereas it is expedient to make provisions for the speedy acquisition of lands necessary for works or other

development measures in connection with flood or prevention of erosion.

It is hereby enacted in the Sixth Year of the Republic of India as follows-

1.

Short title, extent and commencement.

(1)

This Act may be said the Assam Acquisition of Land for Flood Control and Prevention of Erosion Act, 1955.

(2)

It extends to the whole of the State of Assam.

(3)

It shall come into force at once.

2.

Definitions.

- In this Act, unless there is anything repugnant in the object or context-

(1)

"Land" and "person interested" have the meanings respectively as signed to them in the Land Acquisition Act, 1894 (Act 1 of 1894).

(2)

"Collector" means the Deputy Commissioner, the Sub-divisional Officer in charge of Subdivision or any other officer empowered under Section 3 to perform the functions of a Collector.

3.

Power to acquire land.

- If, in the opinion of the State Government or [the Collector or such other officer as is empowered to perform the functions of the Collector] by the State Government it is necessary or expedient to acquire speedily and land for works or other development measures in connection with flood control or prevention of erosion, the State Government or such officer, may by order in writing, acquire any land stating the are and boundaries of the land.

4.

Service on owner or occupier affected by the order of acquisition.

- The Collector shall cause the order passed under Section 3 to be served in such manner as may be prescribed on the owner of the land and on the occupier in cases where the owner is not in occupation of the land and also a notice to the same effect stating that claims to compensation for all interests in the land may be made to him within such time as may be prescribed:

Provided that when the person to be so served is not readily traceable or the ownership of the land is in dispute, the Collector shall cause the above order and notice to be published in such other manner as may be prescribed.

5.

Vesting and taking possession of the land.

(1)

When an order of acquisition is served or is published under Section 4, the land shall vest absolutely in the State Government free from all encumbrances on the date, the order is so served or published.

(2)

The Collector may, at any time after the land becomes so vested proceed to take possession thereof.

(3)

On such vesting, the order passed under Section 3 shall be published in the official Gazette in the manner prescribed.

6.

Compensation.

- The owner of the land which has vested in Government under Section 5(1) shall get compensation at the following rate-

(1)

for land including standing crops and trees, if any, but excluding building or structure, a sum not exceeding forty times the annual land revenue in case of Periodic Patta Land and fifteen times the annual land revenue in case of Annual Patta Land.

Provided that in case of revenue free land and land paying revenue on concessional rate the compensation will be

assessed on the basis of the revenue of similar revenue paying land of the neighbourhood.

In determining this such the Collector shall take the following consideration-

(a)

the value of the land as at the date of acquisition,

(b)

the adverse effect on the value of the land due to possible floods the land or danger of erosion of such land;

(c)

the benefit the owner is likely to derive in respect of his other land in the area due to the control measures;

(d)

the damage sustained by the person interested by reason of the taking of any standing crops or trees which may be on the land at the time of the Collector taking possession thereof;

(2)

for building or structure, if any, a sum equivalent to the proceeds of the materials of the same plus 15 per cent thereof.

Provided that if in lieu of this compensation the owner chooses to take away the buildings or structures as the case may be] the Collector shall allow him to do so within such time as specified by him and the cost of the shifting of the [buildings or structures as the case may be] as may be approved by the Collector in the manner prescribed shall be borne by the Government, which cost however, shall not exceed 20 per cent, of the value of the [buildings of structures as the case may be] as determined by the Collector.

7.

Payment of interim compensation.

- The Collector may, in cases where the owner prays for payment of compensation pending investigation of his claim and determination of the compensation, make interim payment after a preliminary enquiry on the execution by claimant of an indemnity bond with two sureties.

8.

Award.

- Whenever in pursuance of this Act any land is acquired, the Collector shall make an award under his land of-

(i)

the area of the land;

(ii)

the compensation which in his opinion should be allowed for the land, stating the interim payment, if any, made by him;

(iii)

the apportionment of the said compensation among all other persons known or believed to be interested in the land of whom or of whose claims he has information.

9.

Appeals.

- Any person aggrieved by an award made by the Collector may apply to the Collector within seven days of the making of the award requiring the Collector to refer the matter to arbitration and the Collector shall thereupon prepare a brief statement of the case and refer the matter to the decision of the arbitrator appointed by the State Government in this behalf.

10.

Collector may enforce order.

- If the Collector is opposed or impeded in taking possession under this Act of any land, he may use or cause to be used such force as may be necessary to evict any person from the land.

11.

Penalties.

- Whoever obstructs any person from lawfully taking over of any land under this Act shall be punishable with imprisonment for a term which may extend to one year or with fine which may extend to two thousand rupees or with both.

12.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or

intended to be done in pursuance of any of the provisions of this Act or any order made thereunder.

13.

Bar to jurisdiction.

- Except as otherwise expressly provided in this Act, no Court shall have jurisdiction to question the legality of any action taken or order made under this Act.

14.

Power to make rules.

- The State Government may, by notification in the official Gazette, make rules for carrying out the purposes of the Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters namely-

(a)

the manner in which any notice or order under this Act may be served on the person interested or published,

(b)

the manner in which the Collector shall exercise any of his powers under this Act;

(c)

the procedure to be followed in arbitrations;

(d)

the procedure for sale or disposal of materials of buildings or structure on land;

(e)

the manner in which the cost for the shifting of buildings or structures as the case may be to be borne by the State Government shall be approved.

15.

Any sum payable to the Government under the provisions of this Act may be realised as an arrear of land revenue.

16.

Repeal of Assam Ordinance II of 1955.

(1)

The Assam Acquisition of land for Flood Control and Prevention of Erosion Ordinance, 1955 (Assam Ordinance II of 1955), is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been done or taken in the exercise of the powers conferred by or under this Act, as if this Act were in force on the day on which such thing was done or action was taken.

17.

Notwithstanding anything contained in this Act, as originally enacted before the coming into force of the Assam Acquisition of Land for Flood Control and Prevention of Erosion (Amendment) Act, 1962, any action taken or purported to have been taken by any officer in pursuance of any notification issued under Section 3 of this Act, shall be deemed to have been validly taken as if this Act had been in force, as amended by the Assam Acquisition of Land for Flood Control and Prevention of Erosion (Amendment) Act, 1962, and as if the officer empowered under the said Section was legally competent to act under this Act and shall not be called in question in any Court on the ground of incompetency of the officer to act under this Act.

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